



Costs Decision

Site visit made on 2 July 2026

by N Unwin BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14th September 2026

Costs application in relation to Appeal Ref: 6006286

Land to the Rear of White House Farm, Bescar Lane, Bescar L40 9QN

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mrs Nolan for a full award of costs against West Lancashire Borough Council.
 - The appeal was against the refusal of planning permission for permission in principle for a minimum of 4 dwellings and a maximum of 9 dwellings.
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Decision

1. The application for an award of costs is refused.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. Costs may be awarded where a party has behaved unreasonably and the unreasonable behaviour has directly caused another party to incur unnecessary or wasted expense in the appeal process. Unreasonable behaviour in the context of an application for an award of costs may be either procedural relating to the process, or substantive relating to the issues arising from the merits of the appeal.
4. The Council's reasons for refusal include flood risk, and the effect upon agricultural and peaty soil land. The applicant contends that these are matters for the technical details consent stage and not at the permission in principle one. In their view consideration of these matters prevented the granting of permission in principle representing unreasonable behaviour resulting in unnecessary time and expense.
5. Part of the appeal site is located in an area at risk of surface water flooding, in addition to being identified as high-grade agricultural land and peaty soil land. These both relate to whether the fundamental principle of the location is acceptable and as such I have found them to be matters for consideration at the permission in principle stage in my decision. Furthermore, limited information was before the Council to demonstrate that these could successfully be overcome.
6. The applicant contends that when visiting the site, it is apparent that the land has no high agricultural value or ecologically valuable peaty soil. Nevertheless, this is a matter of planning judgement with the Council detailing its case in this regard. As such, the Council has not acted unreasonably in their assessment.

7. Given that I have found that the Council considered matters of flood risk, and the loss of agricultural and peaty soil land as part of the permission in principle application, and given that the Council used its planning judgement supported by evidence, I do not find that it applied the permission in principle framework incorrectly or failed to adequately justify its decision.
8. Therefore, unreasonable behaviour resulting in unnecessary or wasted expense has not occurred and an award of costs is not warranted.

N Unwin

INSPECTOR